

Brackenridge Civil Group Inc

www.brackenridgecivil.com

June 25, 2004

David Dyer, General Manager, Johnson PLC

Dear Mr. Dyer:

This letter sets out the terms on which this office will prepare a stormwater management plan for Johnson PLC. When you have read it and returned a signed copy, it will serve as our agreement for the work. The terms below govern how we will proceed, what we will deliver, and what each of us is responsible for.

The Work

We will prepare a complete stormwater management plan for the site. The plan will address the drainage of the developed property, the detention of stormwater to control the rate of runoff, and the treatment of that runoff for water quality. It will be prepared to the standards of the regional water authority that reviews such plans in this jurisdiction. Our drawings will be issued under a sealed cover sheet, and the calculations that support them will be included in the submission.

The work proceeds in the order the design requires. We begin with the survey and topographic data for the site and the drainage areas they define. We build the hydrologic and hydraulic model from that base and establish the flows the plan must manage. We then size the detention and water quality facilities to meet the required release rates and prepare the erosion and sediment control plan that accompanies the design. When the design is set, we assemble the plan set and the supporting calculations for submission and for the reviewing agency's examination. Our fee includes one round of response to that agency's written comments.

Assignments

Pamela Warren, Project Engineer, will lead the design and carry the coordination with the regional water authority's reviewers. Charles Olson and Jeffrey Perez, Design Technicians, will prepare the plan sheets and the utility and stormwater drafting from her direction. I will review every sheet and seal the completed set. Any correspondence to the reviewing agency or to another public body will be issued over my signature. You may direct questions on the day-to-day work to Pamela Warren, and questions on scope, fee, or the terms of this agreement to me.

Information and Reliance

Our design will rely on the accuracy of the survey, the boundary information, and the site plan furnished to us or prepared under separate agreement. We will review that *information for consistency, but we are entitled to rely on it and are not responsible* for errors it contains. If the survey or the site plan changes after we have begun, the change may affect the design, the schedule, and the fee, and we will advise you of the effect before we act on it.

Fee and Start of Work

Our fee for the work described above is a fixed sum of \$46,000. The fee covers the design, the plan set, the supporting calculations, and the single round of response to the reviewing agency noted above. We will begin the work on July 5, 2004. Services beyond this scope, including additional review cycles, redesign to accommodate a change in the site plan, or attendance at hearings, will be undertaken only with your written authorization, and we will quote the additional cost before we proceed.

Invoicing and Payment

We will invoice monthly, in proportion to the work completed in the period. Each invoice is payable within thirty days of its date. Reimbursable expenses, including reproduction, agency fees, and delivery, are billed at cost and are in addition to the fee. Should an account remain unpaid sixty days after its date, we may, at our discretion, suspend work until the balance is brought current, and we will give you written notice before we do so. A suspension for non-payment extends our schedule by the length of the suspension.

Term and Termination

This agreement takes effect on the date work begins and continues until the plan set has been submitted and the reviewing agency's first round of comments has been answered. Either party may terminate the agreement on ten days' written notice to the other. On termination by you, you will pay for the services performed and the expenses incurred through the date of termination. The drawings, calculations, and files we prepare are our instruments of service and remain our property; on payment in full you are granted the use of them for this project.

Confidentiality

We will hold in confidence the site information, financial figures, and development plans you provide to us, and we will use them only to perform this work. We may disclose what a reviewing agency reasonably requires for its review, and what a court

or a public body compels by law. This obligation survives the completion or termination of the work.

Limitation of Liability

We will perform this work with the care and skill ordinarily exercised by civil engineers practicing in this locality at this time. We make no other warranty, express or implied. Our total liability to Johnson PLC for any claim arising out of or related to this work, whether in contract or in tort, is limited to the amount of the fee paid under this agreement. We are not responsible for the means, methods, or safety of construction, nor for the acts or omissions of contractors or others not under our direct control.

Governing Law

This agreement is governed by the laws of the state in which the site is located. Any dispute arising under it that we cannot resolve between us will be submitted to the courts of that state.

Schedule

The work runs about five months from the start. We can hold that schedule so long as the survey and the site information reach us when they are needed and the reviewing agency responds within its usual time. Delay in either is outside our control. Should one threaten the completion of the work, we will tell you promptly and propose how to recover the time. We do not build float into the schedule for circumstances we cannot foresee, and we will not represent that we can.

Acceptance

If these terms meet with your approval, please sign both copies of this letter where indicated and return one copy to this office. On receipt, we will schedule the work to begin on the date stated above. Should any term require discussion, please telephone me and we will settle it before the work commences.

Sincerely,

Mark Todd

Principal Engineer

Date: June 25, 2004

David Dyer

General Manager, Johnson PLC

Date: June 25, 2004